ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	73rd Commission Meeting
DATE:	29 March 2022
TIME:	2:00 PM
VENUE:	Virtual (http://meet.google.com/cqm-qbib-ghw)

#	AGENDA	DECISIONS
1.	Seek direction on P/ling Rent waiver (JPLP) & issuance of a letter copy on seizure of vehicle to Mr. Pem Tenzin– DoPS	Director of DoPS apprised Commission that four tenants at the seized JPLP building at Phuentsholing requested for a rent waiver for the month of January and February given the lockdown. Towards this, while noting the burden on an individual because of the lockdown, however the rent is a revenue to the Government and as per the Public Finance Act of Bhutan 2007, only Ministry of Finance (MoF) have the authority to manage the revenue. Thus, the Commission directed Director to write letter to MoF seeking their direction and also provide a copy of the letter to the tenants. Director apprised to Commission that Mr. Pem Tenzin requested for a letter from the office on notifying that the vehicles are seized by the ACC. In this regard, Commission directed to give a copy of the letter sent to RSTA in October 2021 notifying on the seized vehicle.
2.	Update and present on CoI Management Policy- LD	As per the direction of the Commission during the 69th Commission Meeting, the LD presented how to manage CoI based on two situations *(details in annexure 1):* ***Situation 1**: Where all the members of the Commission have CoI in the evaluation of a complaint or investigation of a case, the question is to whom such CoI be declared and managed in the first place, and then how to proceed further in such a situation?* ***Situation 2:** Likewise, how to deal with a case, where the Commission, as an institution has a CoI?* Towards these, in depth deliberation was held, as detailed

		below: • While coming to ***Situation 1***, where all members of the Commission have CoI, the Commission has agreed on LD's recommendations with certain modifications. It was suggested that, instead of considering the decision of the CEC (for complaints) and IRC (against the investigation), as final, an independent or a separate committee (similar to Agency Service Coordination Team) may be formed to vet the decisions. • As for ***Situation 2*** - 'institutional CoI', any private/personal interest, which gives rise to an actual or potential CoI must be recognized, appropriately disclosed and managed. For this, there is a practice of managing the actual and potential CoI. However, some members felt that managing perceived CoI is equally important. Thus, LD was directed to see the possibility of managing perceived CoI as well and come up with certain measures. • Further, in addition to the above two ***Situations***, Commission suggested creating another scenario where two members of the Commission have CoI, and how to proceed further in such a situation? In this regard, where two members of the Commission have CoI in a complaint and recused themselves from participating in taking any decision, the CEC's recommendation needs to be vetted by the Commission member who does not have CoI. The reason being that the majority of the members having CoI will not by default negate the voice of the Commission member who is free from CoI. However, LD pointed out the specific requirement that a two-thirds majority of the members must be met to form the quorum of the meeting in accordance with Section 17 (2). Against this reservation, the Commission further directed to see on how to go about it in a situation where a member of the Commission is free of CoI. To this, it was directed to explore from the perspective of how to disclose, review and manage CoI. In addition, Commission raised that with the passage of time and experience gained, the relevant manuals may have to be relooked/revised.
3.	Seek direction on the draft MoU with International Anti-Corruption Academy (IACA), Austria- PPS	The ACC contacted the IACA, Austria to establish network through singing of MoU since 2021. Due to constant change of focal point at IACA as well as other prioritized activities, PPS could not continue the correspondence. Nonetheless, the areas of cooperation recommended by the ACC on cost sharing on training and providing scholarship was suggested to be deleted by IACA based on the rationales that firstly each training is customized, thus, the costs will have to be borne by the requesting organization and secondly scholarship is based on individual merits and they need to compete for the scholarship following IACA admission procedure. And on the format of the

		MoU, while as per the directives of Cabinet Secretary vide letter no *L-27/2017/2128* dated *July 24, 2017* all ministries/agencies are required the follow the prescribed format, IACA suggested to change the terminology of Areas of Cooperation to Forms of Cooperation and keep open the validity of the MoU to reduce administrative burden to renew it. Towards this, while intended areas of cooperation such as cost sharing of training and providing scholarship has been suggested to delete, noting the expertise of IACA in education and training, the Commission directed PPS to write to Ministry of Foreign Affairs for political clearance and OAG for legal vetting and submit to Cabinet Secretary for approval.
4.	Seek direction on the survey on training need by International Association of Anti-Corruption Authorities (IAACA)- PPS	The IAACA was established in 2006 as an independent and non-political anti-corruption organisation with the mandate to promote the effective implementation of UNCAC and assist anti-corruption agencies (ACAs) worldwide in the prevention of and fight against corruption. Up to now, over 140 countries and regions have participated as members or engaged in various IAACA initiatives. The ACC participated in Sixth Annual Conference and General Meeting of the IAACA, in Kuala Lumpur, Malaysia held from 4-7 October 2012. On the sideline of the conference, the ACC also shared its experiences and knowledge on the anti-corruption legal framework with the delegation from Myanmar, which was finalizing its anti-corruption law for submission to the parliament. During the General Meeting of the IAACA held on 5 January 2022, Mr. Simon Peh, Commissioner of the Independent Commission Against Corruption, the Hong Kong Special Administrative Region of the People's Republic of China (Hong Kong ICAC), was elected the President for three-year term (2022 – 2024), while the Hong Kong ICAC has taken over the office of IAACA Secretariat. Also, a new regional coordination mechanism was formed and the members of the IAACA were categorized under five regional groups with reference to the United Nations Regional Groups of Member States. The President and four Vice-Presidents took up the role of Regional Coordinators to deepen communication and collaboration with ACAs within their regions, and arrange tailor-made training activities for them. Thus, ICAC reached out to ACC, Bhutan and sought to update the member information and also indicate training need on the survey form circulated. Towards this, the PPS circulated the survey form to the Management team for their input and also referred to the training need identified in the project proposal sent to UNODC. Thus, recommended to the Commission that most of the training area identified in the survey is relevant to the ACC and suggested to submit the form. In this regard, the Commission directed PPS to first inquire of any commitment needed to be made as being a member to such

		organization, and if so, seek guidance of the Ministry of Foreign Affairs. With regard to the survey, the Commission directed PPS to evaluate and submit the survey as deemed appropriate.
5.	Others:	
	i) Furnishing of Regional Offices-SS	The Head of Secretariate Services apprised Commission that the Wood Craft Center Ltd have informed that the furniture ordered for Bumthang and Trashigang office will take two-three weeks to finish. Since the furniture for Phuentsholing office is ready as well need to apply for Occupancy Certificate, the SS Head sought approval of the Commission to drop the furniture at the Phuentsholing office and carry out other works at Phuentsholing. The Commission approved the proposal and directed SS Head to coordinate the conduct of *Lhabsang* at an auspicious date. And the travel to Bumthang and Trashigang to be made as soon as the furniture are ready. The Commission also directed PPS to coordinate the briefing to the Regional Team as well as prepare the travel program of the Commission to the Regional Offices.
	ii) Proposal to procure laptops under the JSP from OBC 011.02.55.01- Conduct 12 FYP Mid-Year Review and Develop IDP-PPS	As per the directives of Ministry of Finance, an agency can procure high specification laptop which cost above the Government approved amount from projects. Thus, the members of the Finance Committee based on the meeting held on 29 March 2022, recommended to procure Macbook from the Justice Sector Project fund under OBC 011.02.55.01 (Nu. 0.975mn) which is to be used for procurement of equipment for Regional Offices. The Commission approved the proposal and noted that some of the Macbooks should be for the Regional Office staff.
	iii) Separation of staff	While acknowledging the decision of an individual to leave the office, the Commission noted that it is important to ensure that the work on hand is completed before separation. Thus, the Heads of the Departments/Divisions/Services need to ensure an individual intending to separate must complete their assignment in hand and a proper handing taking is conducted before separation.
	iv) Engagement of staff Working from Home and vaccination rate of the staff- HRC	Given the need to ensure the safety of the staff, the office have facilitated those staff who choose to work from home. However, it is important to ensure that they are engaged. Similarly, given the need to ensure smooth functioning of the office, the work of those staff working from home has to be delegated to the ones in office. Moreover, since vaccination is important precondition to protect oneself as well as the others from the pandemic, the Commission directed HRC to make arrangement on: • Engagement of staff working from home;

		• Multi-tasking of staff at the office; and • Encouraging & facilitating the vaccination of staff.

Commissioner **Commissioner** **Chairperson**

Write-up on Conflict of Interest Management Policy

1. Background

The independence and impartiality of the Anti-Corruption Commission (the Commission) are fundamental to the discharge of its constitutional mandates and as such it is imperative that the Commission manages all actual, perceived and potential Conflict of Interest (CoI) in a clear and consistent manner.

CoI in complaint or investigation management is a situation in which a member of the Commission can influence the outcome of complaints by his/her personal/private interests because of positive or negative affiliation towards either complainant or the accused person/s. A CoI may also exist when a member has some involvement with the key issues in the complaint/case.

Accordingly, any private/personal interest, which gives rise to an actual, perceived or potential CoI must be recognized, appropriately disclosed and either eliminated or properly managed. But simply knowing the complainant or accused person is not a sufficient ground for a CoI.

2. Problem statement

a. *Situation 1:* Where all the members of the Commission have CoI in the evaluation of a complaint or investigation of a case, the question is to whom such CoI be declared and managed in the first place, and then how to proceed further in such a situation?

b. *Situation 2:* Likewise, how to deal with a case, where the Commission, as an institution has a CoI?

3. Analysis and recommendations

a. *For situation 1: Where all the members of the Commission have CoI*

To ensure that the complaints are managed in accordance with the provisions of ACAB, the Complaints Evaluation Committee (CEC) was constituted of representatives from relevant Department/Divisions.

Likewise, the Investigation Review Committee (IRC) was constituted at the Department level with representatives from other relevant Department/Divisions (on need basis), mainly to provide strategic operational directions on the progressive findings of cases, during the investigation stages.

For those complaints where all members of the Commission have CoI and a decision cannot be taken, recommendations of the CEC shall be endorsed. This can be drawn from the delegated authority provided under §s 6 (3) & 31 of the ACAB 2011.

Option 1:

Once the members of the Commission have declared CoI on a particular complaint and the same qualifies for investigation, the IRC by default shall provide the necessary directions during the investigation stages including the decision on the closure/outcome of the cases. OR

Option 2:

A separate Committee comprising of Heads of Departments, Division and Service may be constituted to assume role of Investigation Committee to provide necessary directions during the investigation stages including the decision on the closure/outcome of the cases. The senior most Director to assume the role of Chairperson.

b. ***For situation 2: Where the Commission, as an institution, has a CoI***

There is no specific provision in any law and such a situation will arise only in the rarest of the rare cases. Further, there is no practice of CoI declaration and management by an institution as a whole in other jurisdictions. Rather it is confined to individuals concerned.

A CoI creates a risk that professional judgment/actions regarding a primary interest will be unduly influenced by a secondary interest. However, if that secondary interest is taken care, based on the public interest factors, there isn't any issue for the Commission to proceed further with the complaint/case.

Further, the Commission is mandated by the Constitution under Article 27 to take necessary steps to prevent and combat corruption. Accordingly, §s 3, 4, 6, 24, 25 and 83 of the ACAB empowers the Commission to investigate on the alleged corruption offences based on the complaints filed under § 77 or on its own motion without a complaint. Any action on the complaint or a case is guided by relevant provisions provided under the ACAB and other laws in force.

The Commission has a functional immunity under § 34 of the ACAB should there be any material deviation from these administrative or legal requirements despite the actions being done in good faith or intended to be done pursuant to the provision of the ACAB in the public interest. The Commission, as an institution, must be guided by the public interest and the rule of law. Therefore, there appears no instances of 'institutional CoI' to be aroused should the Commission functions based on foregoing factors.